

COMMITTEE ON EDUCATION
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2313
(Reference to printed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Title 15, chapter 5, article 1, Arizona Revised
3 Statutes, is amended by adding section 15-504.01, to read:

4 ~~15-504.01. Strikes and organized work stoppages; prohibition;~~
5 ~~remote instruction; funding; appeal; definition~~

6 A. NOTWITHSTANDING ANY OTHER LAW, ANY TEACHER WHO IS EMPLOYED BY A
7 SCHOOL DISTRICT OR CHARTER SCHOOL IN THIS STATE MAY NOT STRIKE OR ENGAGE
8 IN AN ORGANIZED WORK STOPPAGE AGAINST THE SCHOOL DISTRICT OR CHARTER
9 SCHOOL. A TEACHER WHO VIOLATES THIS SUBSECTION FORFEITS ALL CIVIL SERVICE
10 RIGHTS, ALL REEMPLOYMENT RIGHTS AND ANY OTHER RIGHTS, BENEFITS OR
11 PRIVILEGES THAT ACCRUE AS A RESULT OF EMPLOYMENT, OR FORMER EMPLOYMENT, BY
12 A SCHOOL DISTRICT OR CHARTER SCHOOL IN THIS STATE.

13 B. SUBSECTION A OF THIS SECTION DOES NOT RESTRICT A TEACHER'S RIGHT
14 TO STOP WORK IF THE TEACHER IS NOT ACTING IN CONCERT WITH ONE OR MORE
15 OTHER INDIVIDUALS IN A STRIKE OR AN ORGANIZED WORK STOPPAGE.

16 C. IF A TEACHER STRIKE OR ORGANIZED WORK STOPPAGE AGAINST A SCHOOL
17 DISTRICT OR CHARTER SCHOOL OCCURS IN VIOLATION OF SUBSECTION A OF THIS
18 SECTION, THE DEPARTMENT OF EDUCATION SHALL CALCULATE THE FOLLOWING FOR
19 EACH SCHOOL DISTRICT AND CHARTER SCHOOL THAT IS AFFECTED:

20 1. THE PERCENTAGE OF THE SCHOOL DISTRICT'S OR CHARTER SCHOOL'S
21 STUDENT COUNT BEFORE THE STRIKE OR ORGANIZED WORK STOPPAGE THAT IS
22 ATTRIBUTABLE TO EITHER:

23 (a) STUDENTS WHO PARTICIPATE IN ONLINE INSTRUCTION PURSUANT TO
24 SECTION 15-808.

25 (b) STUDENTS WHO ARE EDUCATED PURSUANT TO AN INSTRUCTIONAL TIME
26 MODEL THAT IS ADOPTED PURSUANT TO SECTION 15-901.08.

27 2. THE PERCENTAGE OF THE SCHOOL DISTRICT'S OR CHARTER SCHOOL'S
28 STUDENT COUNT DURING THE STRIKE OR ORGANIZED WORK STOPPAGE THAT IS
29 ATTRIBUTABLE TO EITHER:

30 (a) STUDENTS WHO PARTICIPATE IN ONLINE INSTRUCTION PURSUANT TO
31 SECTION 15-808.

32 (b) STUDENTS WHO ARE EDUCATED PURSUANT TO AN INSTRUCTIONAL TIME
33 MODEL THAT IS ADOPTED PURSUANT TO SECTION 15-901.08.

34 3. THE INCREASE, IF ANY, OF THE PERCENTAGE CALCULATED PURSUANT TO
35 PARAGRAPH 2 OF THIS SUBSECTION OVER THE PERCENTAGE CALCULATED PURSUANT TO
36 PARAGRAPH 1 OF THIS SUBSECTION.

37 4. FOR STUDENTS WHO ARE EDUCATED PURSUANT TO AN INSTRUCTIONAL TIME
38 MODEL THAT IS ADOPTED PURSUANT TO SECTION 15-901.08, BOTH OF THE
39 FOLLOWING:

1 (a) THE PERCENTAGE OF INSTRUCTION THAT IS PROVIDED IN A REMOTE
2 SETTING BEFORE THE STRIKE OR ORGANIZED WORK STOPPAGE.

3 (b) THE PERCENTAGE OF INSTRUCTION THAT IS PROVIDED IN A REMOTE
4 SETTING DURING THE STRIKE OR ORGANIZED WORK STOPPAGE.

5 (c) THE INCREASE, IF ANY, OF THE PERCENTAGE CALCULATED PURSUANT TO
6 SUBDIVISION (b) OF THIS PARAGRAPH OVER THE PERCENTAGE CALCULATED PURSUANT
7 TO SUBDIVISION (a) OF THIS PARAGRAPH.

8 D. NOTWITHSTANDING ANY OTHER LAW, IF A TEACHER STRIKE OR ORGANIZED
9 WORK STOPPAGE AGAINST A SCHOOL DISTRICT OR CHARTER SCHOOL OCCURS IN
10 VIOLATION OF SUBSECTION A OF THIS SECTION, THE DEPARTMENT OF EDUCATION
11 SHALL REDUCE THE BASE SUPPORT LEVEL OF THE SCHOOL DISTRICT OR CHARTER
12 SCHOOL AS FOLLOWS:

13 1. BY THE PERCENTAGE CALCULATED PURSUANT TO SUBSECTION C, PARAGRAPH
14 3 OF THIS SECTION.

15 2. BY AN AMOUNT EQUAL TO THE PERCENTAGE CALCULATED PURSUANT TO
16 SUBSECTION C, PARAGRAPH 4, SUBDIVISION (c) OF THIS SECTION MULTIPLIED BY
17 THE PERCENTAGE THAT IS CALCULATED PURSUANT TO SUBSECTION C, PARAGRAPH 1,
18 SUBDIVISION (b) OF THIS SECTION.

19 E. A SCHOOL DISTRICT OR CHARTER SCHOOL MAY APPEAL ANY FUNDING
20 REDUCTION PURSUANT TO SUBSECTION D OF THIS SECTION TO THE STATE BOARD OF
21 EDUCATION.

22 F. FOR THE PURPOSES OF THIS SECTION, "ORGANIZED WORK STOPPAGE"
23 MEANS ANY COLLECTIVE ACTION BY TWO OR MORE TEACHERS TO DO AT LEAST ONE OF
24 THE FOLLOWING:

25 1. FAIL TO REPORT FOR DUTY.

26 2. FAIL TO PERFORM THE TEACHERS' ASSIGNED RESPONSIBILITIES.

27 3. INTERFERE WITH THE PERFORMANCE OF ASSIGNED RESPONSIBILITIES BY
28 ONE OR MORE OTHER EMPLOYEES."

29 Amend title to conform

And, as so amended, it do pass

MATT GRESS
CHAIRMAN

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